



AN ACT ESTABLISHING THE GOVERNMENT DATA AND IMPACT COMMISSION; OUTLINING MEMBERSHIP OF THE COMMISSION; PROVIDING DUTIES OF THE COMMISSION; PROVIDING AN APPROPRIATION; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE AND A TERMINATION DATE.

WHEREAS, the Legislature and the governor represent all citizens of Montana and are accountable to their constituents to ensure that government is run efficiently; and

WHEREAS, the governor is charged with executing the law and managing each executive branch agency for the citizens of the state; and

WHEREAS, the Legislature is charged with defining state policy, ensuring accountability of all political subdivisions of the state, appropriating requests to fund the state's operations, and maintaining a balanced budget; and

WHEREAS, there is not a cohesive system in place to measure the programmatic impact that has value to policymakers in achieving the collective goals and objectives of the legislative branch and executive branch; and

WHEREAS, the government data and impact commission is established to develop and make recommendations regarding collection and integration of targeted data and development of impactful performance measures to ensure the effective use of state resources and efficient administration of state government.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Government data and impact commission. (1) There is a government data and impact commission.

(2) (a) The commission consists of the following voting members:

- (i) the presiding officer of the senate finance and claims committee or the officer's designee;
 - (ii) the presiding officer of the house appropriations committee or the officer's designee;
 - (iii) the majority presiding officer and the minority vice presiding officer of the legislative audit committee or their designees;
 - (iv) a member of the modernization and risk analysis committee appointed by the presiding officer of the legislative finance committee;
 - (v) a member of the legislature appointed by the governor who is from the opposite party of the member from the modernization and risk analysis committee;
 - (vi) the budget director or the director's designee;
 - (vii) the director of the department of administration or the director's designee;
 - (viii) the director of the office of state public defender or the director's designee;
 - (ix) two directors of a state agency appointed by the governor or their designees; and
 - (x) one member of the public appointed by the governor.
- (b) The commission consists of the following ex officio, nonvoting members:
- (i) the legislative fiscal analyst;
 - (ii) the legislative auditor;
 - (iii) a staff member from the legislative services division's legal services office;
 - (iv) a deputy budget director; and
 - (v) the chief data officer.
- (3) Appointed members of the commission must be compensated and receive travel expenses as provided for in 2-15-124 for each day in attendance at commission meetings or in the performance of any duty or service as a commission member.
- (4) (a) The department of administration shall staff the commission and pay for the operational costs of the commission.
- (b) The office of budget and program planning and the legislative fiscal division shall provide research and analysis at the request of the commission or its legislative members.
- (c) The legislative services division shall provide audio and visual services for meetings held in the capitol building.

(5) The commission shall elect a presiding officer from one of the voting members who is not a legislator and elect a vice presiding officer from one of the legislative members.

(6) Starting June 1, 2025, the commission shall meet on a quarterly basis when the legislature is not in session.

(7) The commission shall reserve time at each commission meeting for public comment. Public participation is encouraged.

Section 2. Purpose. (1) The commission is charged with developing and recommending a system for the collection and integration of targeted data for use by the legislature and the executive branch in analyzing outcomes of the agency programs, effective use of state resources, and efficient administration of state government.

(2) The system developed must allow policymakers to identify inefficient, redundant, and antiquated programs in state government.

Section 3. Duties. The commission must receive reports, including but not limited to reports on the following:

(1) successful data system implementations that demonstrate existing capabilities to maximize the efficient use of data to inform decisionmaking;

(2) examples of programs for which a data and impact analysis is most likely to produce efficiencies, cost savings, or more informed decisionmaking;

(3) a review of laws governing the administration of state government and of how to make the operation of state government efficient and transparent;

(4) the structure of executive and legislative oversight to facilitate efficient access to data;

(5) (a) how to prioritize the data that has the most impact on policy decisions; and

(b) the number of impact analyses that can be conducted within a certain timeframe; and

(6) the quantified cost to the state for providing efficient access to data.

Section 4. Appropriation. There is appropriated \$75,000 from the general fund to the department of

administration for the biennium ending June 30, 2025, and continuing into the biennium beginning July 1, 2025,
for the administration and costs of the commission.

Section 5. Effective date. [This act] is effective on passage and approval.

Section 6. Termination. [This act] terminates December 31, 2026.

- END -

I hereby certify that the within bill,
HB 834, originated in the House.

Chief Clerk of the House

Speaker of the House

Signed this _____ day
of _____, 2025.

President of the Senate

Signed this _____ day
of _____, 2025.

HOUSE BILL NO. 834

INTRODUCED BY B. MERCER, J. ESP

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